

Ashok Kumar Jaiswal v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 4 March 2024 · 2024:AHC:38904-DB · Writ-C No. 6940 of 2024 · **Writ disposed; connection grievance left to CGRF under clause 7.10.**

HEADNOTE

A writ complaining that an electricity connection has been denied is disposed of, leaving the petitioner to the Electricity Consumer Grievance Redressal Forum under sub-clause 7.10 of the U.P. Electricity Supply Code, 2005, without any decision on the facts or a direction to grant the connection.

FACTUAL SUMMARY

Ashok Kumar Jaiswal filed Writ-C No. 6940 of 2024 before the Allahabad High Court against the State of Uttar Pradesh and another. He complained that the electricity connection he had prayed for had been denied. The order does not identify the premises, the distribution licensee, any application, or the reason for refusal. The Chief Standing Counsel represented the State, and Shri Rishu Mishra appeared for the respondent.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

CGRF remedy where connection is denied

HOLDING

Where the petitioner has been denied the electricity connection prayed for, the writ is disposed of and it is left open to him to avail the Electricity Consumer Grievance Redressal Forum under sub-clause 7.10 of the U.P. Electricity Supply Code, 2005. The Court does not determine the true facts or direct that the connection be granted. ¶ 1-3

PRINCIPLE TAGS

alternate-remedy-clause-7.10 The writ was disposed of because an adequate remedy was available under sub-clause 7.10 of the Code, 2005, with no direction to grant the denied connection. ¶ 2-3

cgrf-7.10-alternate-remedy The petitioner was left to approach the Electricity Consumer Grievance Redressal Forum under sub-clause 7.10 of the U.P. Electricity Supply Code, 2005. ¶ 2-3

consumer-grievance-redressal-forum-remedy-clause-7.10 Denial of the connection prayed for was treated as a grievance for the Electricity Consumer Grievance Redressal Forum under sub-clause 7.10, and the writ was disposed of on that basis. ¶ 2-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS ENTITLED TO THE ELECTRICITY CONNECTION THAT HAD BEEN DENIED

The Court declined to go into the true facts and left the grievance to the forum under sub-clause 7.10. ¶ 1-3